

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

X

CAMROD ERBY,

Plaintiff,

-against-

Index No.

SUMMONS

Plaintiff Designates Bronx

County as the Place of Trial.

Venue is Pursuant to C.P.L.R. 509

Jury Trial Demanded

CITY OF NEW YORK, NEW YORK CITY DEPARTMENT,
P.O. ADELA RODRIGUEZ, IN HIS INDIVIDUAL CAPACITY,
DETECTIVE JAMES A. MCBROWN, SHIELD NO. 2788,
TAX ID No. 942153, IN HIS INDIVIDUAL CAPACITY,
DETECTIVE SCOTT PATTERSON, IN HIS INDIVIDUAL CAPACITY,
PATRICK SULLIVAN, IN HIS INDIVIDUAL CAPACITY, AND
DET. MICHAEL FAHY, TAX ID NO. 941727, IN HIS INDIVIDUAL CAPACITY,

Defendants,

X

You are hereby summoned to answer the Complaint in this action and to serve a copy of your answer or if the Complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: October 14, 2022

Bronx, New York

By

 Esq.

Welton K. Wisham, Esq.

The Law Offices of Welton K. Wisham

1200 Waters Place, Suite 105

Bronx, New York 10461

718- 924-3557 Office

Defendants Address:

The New York City Police Department
One Police Plaza,
York, New York 10007

City of New York Department of Law
100 Church Street
New York, New York 10007

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

X

CAMROD ERBY

Plaintiff,

- against -

ECF

Complaint

Index No.

Plaintiff Designates Bronx
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Defendants,

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Plaintiff, Camrod Erby, by his attorney, Welton K. Wisham, of the Law Office of Welton K. Wisham, alleges upon information, and belief, the following against Defendants, The City of New York, the New York City Police Department, Police Officers, Adela Rodriguez, Detectives James a. McBrown, Scott Patterson, Patrick Sullivan, and Michael Fahy, that;

PRELIMINARY STATEMENT

1. The Defendants the City of New York, New York City Police Department, through its agents, servants and or employees, police officers Adela Rodriguez, James A. McBrown, Scott Patterson, Patrick Sullivan and Michael Fahy of the New York City Police Department knowingly and intentionally violated Plaintiff's Constitutional rights by maliciously prosecuting Mr. Erby for a crime which the Defendant officers knew or should have known Plaintiff had not committed.

2. Plaintiff Camrod Erby was arrested on or about October 28, 2018, by officer , who charged Mr. Erby of committing the following criminal offenses, 1) Attempted Murder 2nd Degree, P.L. Section 110/125.25, 2) Attempted Assault, P.L. 110/120.10, 3) Criminal Possession of a Weapon, P.L. 265.03 (1)(b), 4) Criminal Possession of a Weapon, 2nd Degree, P.L. 265.03(3), 5) Assault in 2nd Degree, P.L. 120.05(2), 6) Attempted Assault, P.L. 110/120.05, 6) Criminal Possession of a Firearm, P.L. 265.01-B1, 7) Assault in the 3rd Degree, P.L. 120.01, 8) Harassment in the 2nd Degree, P.L. 240.26. All charges were favorably Dismissed on March 1, 2022.

3. The underlying police officers knowingly and willfully engaged in misconduct which violated Mr. Erby's rights to due process of law by **failing to present an array of photographs to the victim to identify the person responsible for the victim's injuries.**

4. That a photo array **is required under New York State law and under the Due Process Clause of the Fourteenth Amendment to the Constitution of the United States to ensure fundamental fairness to the accused.**

5. The individual police offices as Defendants in the instant case knowingly and willfully violated this fundamental Constitutional right which caused Plaintiffs arrest, detention, and prosecution for three years until all charges against the Plaintiff were favorably dismissed.

6. That **presenting a single photograph to an alleged crime victim for the purpose of identification of a person responsible for committing a criminal act is violative of the due process clause due to the unreliability and the suggestiveness which is strictly forbidden.**

7. The Defendants knowingly and willfully tainted evidence which resulted in Plaintiff's prolonged deprivation of liberty without due process of law.

8. That on January 5, 2022, Ms. Rachel Taverna, Assistant District Attorney, Bronx County, New York submitted a written **Recommendation for Dismissal of Indictment** No. 2361/2018, to the Bronx Criminal Court to dismiss all charges under the Indictment that caused Camrod Erby to be held in custody for eighteen months without probable cause or legal justification.

9. That Assistant District Attorney, Taverna stated in her letter to the Court in relevant part that.... **Prior to Complainant testimony in front in an “ independent source hearing before Judge Clanty, the Complainant[Stefon Collins] informed the People that his now unsure of who shot him and that he didn’t see the shooter for a long enough period of time. The Complainant no longer believes that the shooter is Camrod Erby and is no longer willing to testify against the Defendant. There is no video surveillance where the defendant (Camrod Erby) can be identified and there are no additional eyewitnesses ..” (emphasis added)**

10. **All charges stemming from the Indictment against Plaintiff Camrod Erby were favorably dismissed on March, 1, 2022**

11. That the Defendants’ intentional misconduct deprived Plaintiff Erby of his liberty for eighteen months without probable cause to have reasonably believed that Plaintiff had engaged in criminal conduct at the time of Plaintiff’s unjustifiable arrest.

12. Camrod Erby was arrested and held in custody of the New York City Department of Corrections at Rikers Island from October 30, 2018, until June 11, 2020, whereby the Defendants charged Plaintiff with attempted murder, charges which the Defendant officers knew that Mr. Erby had not committed.

13. The Defendants conspired with each other in presenting false criminal charges against Plaintiff Erby which resulted in Plaintiff's incarceration at Rikers Island and knowingly and intentionally caused Plaintiff to suffer the deprivation of his liberty and emotional distress without due process of law.

14. All charges against the Plaintiff were favorably dismissed on March 1, 2022. Mr. Erby now brings this action against the Defendants for the unconscionable misconduct exhibited by the Defendant police officers for the deliberate indifference exhibited by the officers to Plaintiff's Constitutional rights pursuant to 42 U.S.C. Section 1983, the common law of the State of New York and under Section 1988 against the City of New York and the individual police officers named herein for False Arrest, False Imprisonment, Malicious Prosecution and violation of Plaintiffs' right arising under the Fourth and Fourteenth Amendments to the Constitution of the United States.

JURISDICTION

15. This Court has personal jurisdiction over the Defendants because the Defendants transacted business within the State of New York within the meaning of CPLR Section 302(a)(1), and caused injury to the Plaintiff within the State of New York..

16. This Court has concurrent Jurisdiction to hear Plaintiff's federal causes of action pursuant to 42 U. S. C. Section 1983.

VENUE

17. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, County of Bronx causing injury to the Plaintiff.

PARTIES

18. Plaintiff Camrod Erby is African American and a citizen of the United States. Mr. Erby resides in New York City, New York.

19. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

20. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

21. That at all times relevant hereto, the City of New York employed the Defendant Officers involved in this incident.

22. That at all times relevant herein, Defendants Police officers, , Adela Rodriguez and Detectives James A. McBrown , Scott Patterson , Patrick Sullivan, and Michael Mahy were duly appointed police officers of the New York City Police Department who were directly involved in the violations of Plaintiff's Constitutional rights as described more fully herein underlying this lawsuit who were at all times mentioned in this Complaint, agents, servants, and employees, acting within the scope of their employment by the New York City Police Department acting within their individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

23. That at all times relevant hereto, the New York City Police Department ("NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers.

24. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police

Department practices, policies and procedures including the appointment, training, supervision, discipline and retention of the Defendant officers and of all NYPD officers.

25. That at all times relevant hereto, Defendant New York City Police Department was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and the State of New York.

26. That at all relevant times, the individual police officers involved in this incident acted within the scope of their employment and under the color of state law.

27. At all times relevant herein, the police officers involved in the underlying incident are believed to be assigned to the 47th police precinct who were and still remain police officers employed by the New York City Police Department who acted in the capacity of agent, servant and employee of the City of New York, New York City Police Department within the scope of their employment and as such acted under color of state law.

JURY DEMAND

28. Plaintiff demands trial by jury.

PROCEDURAL HISTORY: NOTICE OF CLAIM

29. Mr. Erby in furtherance of his New York State causes of action brought against the Defendants herein, timely filed a Notice of Claim against the City of New York on May 13, 2022, pursuant to Municipal Law Section 50-h and in accordance with New York State Law.

30. In accordance with New York State and General Municipal Law, Plaintiff testified at a hearing pursuant to General Municipal Law Section 50-h on or about July 25, 2022.

31. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and served on the Defendants identified herein and that the City of New York has failed to pay or adjust the Plaintiff's claims.

32. The Notice of Claim and the initial Complaint was filed within the one year and ninety days from the date of the dismissal of all charges filed against the Plaintiff.

33. Mr. Erby has sustained severe emotional stress from being prosecuted for a crime he did not commit that lingered for three years and eight months.

34. Plaintiff was held in custody in Rikers Island for approximately eighteen months in deprivation of his liberty without probable cause or legal justification.

35. Plaintiff now seeks compensation for his injuries in an amount which is in excess of the minimal jurisdictional limits of all the lower Courts of the State of New York.

36. Mr. Erby also seeks an award of costs and reasonable Attorney fees associated with the prosecution of the instant action and any other and further relief as this court seems just and proper pursuant to 42 U.S.C. Section 1988.

STATEMENT OF FACTS

37. On October 28, 2018, at approximately 04:27 am, Steffon Collins arrived at the NYC Health & Hospital/Jacob Hospital, Bronx, New York complaining of a gunshot wound to his abdomen /back and huma bit to his face. The wounds were stapled and dressed.

38. Mr. Collins was discharged the next day on October 29, 2018, at approximately 1900 hours.

39. Mr. Collins was treated non- operatively and placed on anti-biotics and given pain medication according to the medical records recorded by Jacobi Medical Center. The medical records indicated that Mr. Collins was "alert and responsive." Mr. Collins was not on bed rest nor did he have difficulty moving or any sign of muscle weakness.

40. According to the medical records maintained by Jacobi Medical Center, Mr. Collins informed the medical staff that he had gotten into an argument with “a woman, at a bar. She bit him. Her brother then came and shot him.”

41. Mr. Collins never mentioned or name Mr. Camrod Erby as the person who had shot him while interviewed by hospital staff.

Lacked of probable cause

42. On October 30, 2018, Mr. Collins at approximately 1300 hours, the complainant was seen by a Social Worker at Jacobi Hospital as part the **Stand Up to Violence Team**. Erika Mendelsohn, LCSW/NOE Romo, Md and Outreach worker, Christine Clark were part of the team that met with Mr. Collins.

43. According to the hospital notes, Mr. Collins told the medical staff and team **that “ he was at a party when he got into an argument with someone and started fighting. After the fight when he was going to his car, the same person came back and shot him. He reports that he does not know who the individual is but that the incident was caught on video.” (Emphasis added)**

44. Mr. Collins, when asked by the Stand Up to Violence Team, informed the medical staff and social worker that he felt no need to retaliate and did not feel the need to take revenge. Mr. Collins continued to inform the team members that **HE FELT SAFE RETURNING HOME AND DOES NOT BELIEVE HE WILL RUN INTO THE PERPERTRATOR AS THE INCIDENT OCCURRED IN THE BRONX AND HE RESIDES IN..... “ (emphasis added)**

45. That on October 28, 2018, the Defendants as police officers had clear evidence based on the medical records that the alleged victim, **Steffon Collins** could not identify the person who shot him.

46. At no time during Mr. Collin's conversations with medical staff and social workers did Mr. Collins identify Plaintiff, Camrod Erby as the shooter.

47. Thus, the Defendants police officers knew or should have known that Mr. Collin's had made statements made to the medical staff at the Jacobi Medical Center, admitting that he, Steffon Collins, did not know who had shot him.

48. Thus, there was no probable cause to have reasonably believed that Plaintiff, Camrod Erby was the person who had shot Mr. Collins on October 28, 2018.

49. Moreover, on October 28, 2018, at approximately 3:14 pm, (1514 via medical record), Mr. Collins was counseled by Christine Carrozza, LMSW, a social worker at the Jacobi Medical Center that counseled Mr. Collins on the use of alcohol.

50. **Mr. Collins had a blood alcohol level of 164 at the time of his admission into Jacobi Hospital on October 28, 2018.**

51. **Mr. Collins informed Ms. Carrozza that he attributed his positive Blood Alcohol Level to the fact that he had attended a party prior to the shooting and had been drinking vodka.** (Emphasis added).

52. Officers Adela Rodriguez, James A. McBrown, Scott Patterson, Patrick Sullivan and Michael Fahy ignored this evidence admitted by Mr. Collins and arrested Plaintiff Camrod Erby on October 30, 2021.

53. On October 28, 2018, at approximately 0500 hours, Detective Bryan Leote of the 326 Detective Borough Bronx Operation Squad spoke to police officer Warburton of the 47th precinct in regards to the shooting of Steffon Collins.

54. According to the General Investigation report on October 28, 2018, officer Warburton stated "that he and his partner, officer Jean-Pierre were assigned to the 47th White Plains Auto when they received a radio run for a 10-34 male shot at Boston Road and East Gun Hill Road.

55. Upon arrival, he (officer Warburton) observed the victim, later identified as,, laying on the ground in the parking lot of the BP gas station located at 1128 E. Gun Hill Rd.

56. PO Warburton stated that Mr. Collins told him that he had gotten into an argument with a female friend of his a few blocks away from the location of the BP gas station.

57. PO Warburton indicated in his report that Mr. Collins told the female friend to call her brother and have him come down to fight Mr. Collins.

58. Officer Warburton further stated that Mr. Collins told him that the female friend had called her brother who met up with Mr. Collins on the street and shot him one time to the right abdomen.

59. PO Warburton indicated in his written report that Mr. Collins was taken "in ambulance to Jacobi Hospital for treatment." General Investigation Report Prepared by Detective Bryan Leote, October 28, 2018.

60. Officer Leote report did not name Camrod Erby as the person who shot Mr. Collins.

61. Mr. Collins did not inform police officers that Plaintiff Erby was the person responsible for the shooting. (Emphasis added)

62. That at 0515 hour on the morning of October 28, 2018, the Defendants interviewed Mr. Collins at Jacobi Hospital.

63. According to the “ **Interview -In- Person report prepared by Detective Scoot Patterson, Mr. Collins stated** in sum and substance that a woman he referred to as Ebay, invited him to a party at a building on Webster Avenue, not far from Gun Hill Road.

64. That after getting off work,, SC (Mr. Collings) said that he got into his white 2015 Nissan Altima and drove the short distance from the hospital where he worked to a house party where he parked in front of a fire hydrant.

65. SC informed officer Patterson that he had gotten into a fight with Ebay and that Ebay bit him in his face.

66. Mr. Collins then informed officer Patterson that he offered Ebay a ride home . Ebay was on the phone and asked Mr. Collins to stop the car.

67. Mr. Collins stopped driving and Ebay gave him the telephone . Ebay’s brother was on the phone according to Mr. Collins whereby a threat was made towards Mr Collins who challenged the person on the phone to fight him.

68. According to Mr. Collins, Ebay’s brother known as “Tuqui appeared and shot him in the stomach.

69. Moreover, according to the report, Mr. Collins stated that he did not see who if anyone got in his car because he ran away from the scene. Mr. Collins was subsequently taken to Jacobi Hospital for treatment.

70. **Camrod Erby was not named by Mr. Collins in the In Person Interviews Report.**

71. The Defendants officers canvassed that alleged crime scene and found no videos that featured Camrod Erby.

72. Mr. Collins' vehicle was located on the corner of East 215th St. Bronx, New York between Hicks St. Dt. Patterson call ECT to respond and process the vehicle.

73. Detective McBrown arrived at Jacobi Hospital at approximately 1100 on October 28, 2018.

74. Detective McBrown interview Dr. Campbell who allegedly informed officer McBrown that Mr. Collins told Dr. Campbell that **Ebay's brother named 2Gee shot him in the stomach.**

75. Mr. Collins told Detective McBrown that he had known 2Ggee for years.

76. Mr. Collins did not tell Detective McBrown that Camrod Erby was the person who shot him on October 28, 2018.

77. **On October 28, 2018 at approximately 1750 hours Detective Patrick Sullivan initiated a Facebook preservation request for Camrod Erby.**

78. On October 28, 2018, at approximately 1850 hours Detective Sullivan distributed Wanted Flyers of Camrod Erby.

Suggestive Identification: Single Photograph

79. That on October 28, 2018, at approximately 1950 hours, Detective James McBrown, **suggested the identification in violation of Mr. Erby's Constitutional rights to Due Process of Law by showing the alleged crime victim, a SINGLE PHOTOGRAPH OF CAMROD ERBY at Jacobi Hospital.**

80. Allegedly, Mr. Collins confirmed the person in the photograph as the person who shot him.

81. Plaintiff was arrested on October 30, 2018, and charged with Attempted Murder, Attempted Assault, Criminal Possession of a Weapon, Criminal Possession of a Firearm, and Harassment.

Probation Hearing: No Probable Cause

82. Mr. Erby was on probation at the time of his arrest.

83. Plaintiff was remanded to Rikers Island.

84. On November 1, 2018, the Defendant police officers caused The New York State Department of Corrections and Supervision to issue an “ **Notice of Violation of Conditions of Parole**” to Plaintiff Camrod Erby.

85. Plaintiff was informed through the written notice that a preliminary hearing, a hearing predicated on determining probable cause that Mr. Erby had in fact committed the charges on October 28, 2018, as charged.

86. **The probable cause hearing was scheduled for November 13, 2018.**

87. Mr. Erby denied being involved in the shooting incident and requested to appear at the preliminary hearing.

88. On November 13, 2018, the State of New York Board of Parole Preliminary Violation Hearing issued a Decision and Hearing Summary stating that “ **The DOCCS WAS UNABLE TO PROCEED ON ANY CHARGES BECAUSE THE WITNESS IS UNAVAILABLE: THE WARRANT IS LIFTED**. The decision was signed by the Hearing officer Cindy Morro.

89. **Mr. Erby was entitled to be immediately released from incarceration, yet the City of New York continued to hold the Plaintiff in custody until June 11, 2021. (Emphasis)**

90. Plaintiff, Camrod Erby’s right to liberty was knowingly and willfully deprived by officers Adela Rodriguez, Detectives James a. McBrown, Scott Patterson, Patrick Sullivan, and

Michael Fahy who knew or should have known that Plaintiff was not the person responsible for shooting.

91. Mr. Erby was deprived of his liberty and incarcerated in Rikers Island for approximately eighteen months in direct violation to his right to Due Process of Law pursuant to the Fourteenth Amendment to the United States Constitution of under Article 12 of the Constitution of the State of New York.

92. Defendants, Adela Rodriguez, Detectives James a. McBrown, Scott Patterson, Patrick Sullivan and Michael Fahy knowingly and willfully with deliberate indifference to Plaintiff's Constitutional rights, caused the deprivation of Mr. Erby's liberty for eighteen months without probable cause and in direct violation to the Due Process Clause of the Fourteenth Amendment to the United States Constitution

93. That Assistant District Attorney, Taverna stated in her letter to the Court in relevant part that.... **Prior to Complainant testimony in front in an “ independent source hearing before Judge Clanty, the Complainant informed the People that his now unsure of who shot him and that he didn't see the shooter for a long enough period of time. The Complainant no longer believes that the shooter is Camrod Erby and is no longer willing to testify against the Defendant. There is no video surveillance where the defendant (Camrod Erby) can be identified and there are no additional eyewitnesses...” (emphasis added)**

94. **All charges stemming from the Indictment against Plaintiff Camrod Erby were favorably dismissed on March, 1, 2022**

95. The Defendants officers willfully and deliberately failed to show the alleged crime victim an array of photographs of the suspect responsible for the October 28, 2018, incident described herein.

96. Mr. Erby suffered severe emotional distress caused by the eighteen months of unlawful incarceration.

97. The Defendants, New York City Police officers conspired to violate Plaintiff's Constitutional right to due process of law and New York State rights.

98. The officers commenced the prosecution against the Plaintiff without probable cause and without due process of law causing Plaintiff Erby to suffer extreme pain and suffering and mental anguish.

99. The Defendants as police officers of the City of New York, violated Mr. Erby's right to Due Process of law when the officers knowingly used the single photograph which was an unnecessary and unreasonable suggestive identification procedure to arrest, detain and prosecute the Plaintiff in violation of law.

100. That showing of one photograph to an alleged crime victim so tainted the resulting identification to render it unreliable.

101. Mr. Collins never informed the Respondents that Camrod Erby had shot him. In fact, according to the medical records, Mr. Collins specifically informed the doctors on October 28, 2018, that he did not know the person who shot him.

Plaintiff's

DNA: Not present at Crime Scene.

102. The Defendants had Plaintiffs' DNA tested against the DNA found in Mr. Collins vehicle that Collins indicated the suspect had entered his vehicle and drove away.

103. The laboratory report did provide evidence that Plaintiff's DNA had in fact been found inside Collin's vehicle.

AS AND FOR A FIRST SECOND CAUSE OF ACTION AGAINST DEFENDANTS P.O. ADELA RODRIGUEZ, DETECTIVE JAMES A. MCBROWN, DETECTIVE SCOTT PATTERSON, PATRICK SULLIVAN, AND DET. MICHAEL FAHY, FOR FALSE ARREST AND FALSE IMPRISONMENT PURSUANT TO 42. U. S.C. SECTION 1983

104. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "103", with the same force and effect as though more fully set forth at length herein.

105. That at all time herein mentioned Defendant Police Officers, Adela Rodriguez, James A. McBrown, Scott Patterson, Patrick Sullivan and Michael Fahy falsely arrested, imprisoned and participated in the prosecution of the Plaintiff, Camrod Erby without probable cause to have reasonably believed that the Plaintiff had committed the unlawful acts for which accused on October 28, 2018.

106. Plaintiff was unreasonably seized, and incarcerated by the Defendants police officers without probable cause.

107. That officers, Adela Rodriguez, James A. McBrown, Scott Patterson, Patrick Sullivan and Michael Fahy possessed information prior to Mr. Erby's arrest which was consisted with Plaintiff's innocence for which the Defendant officers chose to ignore causing Plaintiff Erby to be deprived of his liberty for eighteen months in Rikers Island without probable cause.

108. Mr. Erby was conscious of his detention, arrest, and seizure and did not consent to his confinement.

109. That the Defendant police officers, Adela Rodriguez, James A. McBrown, Scott Patterson, Patrick Sullivan and Michael Fahy knew or should have known that they lacked probable cause to arrest and seized the Plaintiff and that Plaintiff had not been engaged in any criminal activity at the time of his arrest.

110. Mr. Erby was wrongfully and unjustifiably held against his will and unreasonably seized, and deprived of his liberty in violation of his right to due process of law.

111. The Defendants knowingly and willfully prepared false police reports accusing Plaintiff of crimes for which the officers knew Plaintiff had not committed.

112. That the Defendants, Adela Rodriguez, James A. McBrown, Scott Patterson, Patrick Sullivan and Michael Fahy abuse of their authority and position as New York City Police officers which caused Plaintiff's unlawful detention.

113. That the officers named herein, knowingly, and willfully deprived Mr. Erby of his right to liberty and freedom under the Fourth and Fourteenth Amendments to the Constitution of the United States, secured by 42 U.S.C Section 1983.

114. The Defendant officers' actions were willful, wanton and reckless.

115. Plaintiff was suffered humiliation and personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, and scorn, caused by the Defendants' abuse of authority and lack of probable cause during the course of Plaintiff's arrest, detention and prosecution.

116. As a direct and proximate result of officers Adela Rodriguez, James A. McBrown, Scott Patterson, Patrick Sullivan and Michael Fahy's misconduct and abuse of authority described above, Plaintiff Camrod Erby was caused to suffer eighteen months of emotional distress inside the walls of the New York City Department of Corrections' Rikers Island, for which the Plaintiff now seeks financial compensation for the pain, present and future emotional distress in an amount that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST POLICE OFFICERS
P.O. ADELA RODRIGUEZ, JAMES A. MCBROWN, SCOTT PATTERSON, PATRICK
SULLIVAN, AND DET. MICHAEL FAHY, FOR VIOLATING PLAINTIFFS' RIGHT
TO BE FREE FROM UNREASONABLE SEARCH AND SEIZURE PURSUANT TO 42
U.S CODE SECTION 1983.**

117. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "116," with the same force and effect as though more fully set forth at length herein.

118. The instant action against the Defendants is predicated pursuant to 42 U.S.C Section 1983, which states in relevant part that :

" Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress..." 42 U.S.C Section 1983,

119. Plaintiffs' federal causes of action against the Defendants are brought pursuant to the Fourth Amendment to the Constitution of the United States for the Defendants' unreasonable seizure and malicious prosecution of Plaintiff, Camrod Erby.

120. Defendants violated Plaintiffs' Constitutional rights under the Fourth Amendment by arresting Plaintiff and depriving Mr. Erby of his liberty for eighteen months by unduly suggesting the Plaintiff's identity to Mr. Collins by showing the victim one photograph of Mr. Erby in violation of the Fourteenth Amendment's Due Process Clause.

121. The Defendant officers knew or should have known that Mr. Collins admitted to medical staff during his hospitalization that he did not know who had shot him.

122. That the manner in which the Plaintiff was seized and held in custody as set forth herein was objectively unreasonable under the circumstances and resulted in Plaintiff's incarceration and loss of liberty for eighteen months.

123. That the Defendant's conspired together to violate Plaintiffs' rights to be free from the unreasonable search, seizure and deprivation of liberty without probable cause for Plaintiff's arrest, detention or prosecution.

124. That in the manner described herein, the Defendants acted with deliberate indifference and with reckless disregard to Plaintiff's Constitutional rights.

125. Mr. Erby was intentionally deprived of his rights, privileges and immunities secured to him under the Constitution and laws of the United States, and the State of New York including but not limited to the Plaintiffs' rights secured under the Fourth, and Fourteenth Amendment to the Constitution of the United States, and pursuant to Article I, Section 12 of the Constitution of the State of New York.

126. That the Defendants acted in their individual, and official capacity within the scope of their employment with the New York City Police Department, under color of law, conspired together and with others, and reached a mutual understanding to undertake a course of conduct that violated Plaintiff's rights, privileges, and immunities thereof.

127. As a direct and proximate result of the conspiracy between the Defendant officers, Mr. Erby was unreasonably searched, seized, and imprisoned in violation of Plaintiff's rights under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

128. That by reason of the foregoing, Camrod Erby was intentionally confined without privilege and without probable by the Defendant police officers, Adela Rodriguez, James A. McBrown, Scott Patterson, Patrick Sullivan and Michael Fahy.

129. As a consequence thereof, Plaintiff Camrod Erby has been greatly injured.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE CITY OF NEW YORK AND DEFENDANTS, P.O. ADELA RODRIGUEZ, AND DETECTIVES JAMES A. MCBROWN, SCOTT PATTERSON, PATRICK SULLIVAN, AND MICHAEL FAHY, PURSUANT TO 42 U.S.C SECTION 1983, FOR VIOLATING PLAINTIFF'S RIGHTS PROTECTED UNDER THE DUE PROCESS CLAUSE OF THE FOURTEENTH AMENDMENT TO THE CONSTITUTION OF THE UNITED STATES

130. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs “1 through “129”, with the same force and effect as though more fully set forth at length herein.

131. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of Plaintiffs’ right to free from the deprivation of liberty without due process of law.

Single Photograph

Unduly Suggestive Negates Probable Cause for Arrest.

132. That on October 28, 2018, at approximately 1950 hours, Detective James McBrown, suggested the identification in violation of Mr. Erby’s Constitutional rights to Due Process of Law by showing the alleged crime victim, a SINGLE PHOTOGRAPH OF CAMROD ERBY at Jacobi Hospital.

133. “ Absent circumstances that cast doubt on the reliability of an identification, such as an unduly suggestive procedure, positive photo identification by an eyewitness is normally sufficient to establish probable cause to arrest.” Celestin v. City of New York, 81 F.Supp. 2d 420, 431 (E.D.N.Y.)

134. “The basic question is whether an identification was so defective that probable cause could not reasonably be based upon it.” Jenkins v. City of New York, 478 F.3d 76,93 (2nd Cir. 2007)

135. That Defendants in the instant case, police officers Adela Rodriguez, James A. McBrown, Scott Patterson, Patrick Sullivan and Michael Fahy retrieved a photograph of Plaintiff Camrod Erby and showed this one photograph to Stefon Collins, a crime victim and subsequently caused the arrest of Plaintiff Erby in violation of Plaintiff’s rights arising under the Due Process Clause of the Fourteenth Amendment.

136. That Mr. Collins admitted that he could not identify Camrod Erby as the person who shot him.

137. The Defendant officers engaged in misconduct by unduly suggesting Plaintiff's identify to the victim knowing that Mr. Collins had previously informed medical staff that he did not know the person who had shot him.

138. That the New York State Department of Corrections and Community Supervision did not find probable cause to believe that Plaintiff Erby had shot the alleged victim Stefon Collins.

139. That on November 13, 2018, the State of New York Board of Parole Preliminary Violation Hearing issued a **Decision and Hearing Summary** stating that “ **The DOCCS WAS UNABLE TO PROCEED ON ANY CHARGES BECAUSE THE WITNESS IS UNAVAILABLE: THE WARRANT IS LIFTED**. The decision was signed by the Hearing officer Cindy Morro.

140. That the Defendant Officers knew or should have known that no witnesses appeared at the probable cause hearing by the DOCCS.

141. That Plaintiff Erby should have been released from incarceration yet the Defendant officers continued the prosecution against Mr. Erby without a reasonable belief that Plaintiff had committed the underlying criminal charges against Stefon Collins.

142. That notwithstanding the fact that the Defendants possessed information prior to Plaintiff's arrest which supported Plaintiff's innocence, the officers ignored such objectively reasonable exculpatory evidence and caused Plaintiff to be deprived of his liberty for eighteen months.

143. The Defendants seizure, detainment, prosecution and incarceration was patently unreasonable and deprived Plaintiff of his liberty interest without probable cause or legal justification.

144. As direct and proximate result of the Defendant officers' conduct, Plaintiffs' rights to Due Process of Law were violated causing Plaintiff to suffer humiliation, degradation, embarrassment, and physical and mental pain and suffering.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST OFFICERS, P.O. ADELA RODRIGUEZ, AND DETECTIVES JAMES A. MCBROWN, SCOTT PATTERSON, PATRICK SULLIVAN, AND MICHAEL FAHY FOR MALICIOUS PROSECUTION
PURSUANT TO 42 U.S.C. SECTION 1983.**

145. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through "144", with the same force and effect as though more fully set forth at length herein

146. That the Defendants, their agents, servants and /or employees, without cause or justification, intentionally and maliciously initiated the underlying criminal proceedings against Plaintiff, Camrod Erby without probable cause to have reasonably believed Mr. Erby had committed the underlying criminal acts for which he was accused.

147. That the Defendant officers continued the prosecution against Mr. Erby with malice and lack of probable cause.

148. Plaintiff was deprived of his right to liberty for approximately eighteen months inside Rikers Island in violation of his rights under the Due Process Clause of the Fourteenth Amendment.

149. That Assistant District Attorney, Taverna stated in her letter to the Court in relevant part that.... **Prior to Complainant testimony in front in an " independent source hearing before**

Judge Clanty, the Complainant informed the People that his now unsure of who shot him and that he didn't see the shooter for a long enough period of time. The Complainant no longer believes that the shooter is Camrod Erby and is no longer willing to testify against the Defendant. There is no video surveillance where the defendant (Camrod Erby) can be identified and there are no additional eyewitnesses..." (emphasis added)

150. All charges stemming from the Indictment against Plaintiff Camrod Erby were favorably dismissed on March, 1, 2022

151. That the Defendants initiated the underlying criminal proceedings against the Plaintiff with malice.

152. As direct and proximate result of the Defendant officers' misconduct, Plaintiff suffered extreme mental anguish, humiliation, pain and emotional distress from his wrongful and illegal incarceration for eighteen months on Rikers Island.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST THE DEFENDANTS, P.O. ADELA RODRIGUEZ, AND DETECTIVES
JAMES A. MCBROWN, SCOTT PATTERSON, PATRICK SULLIVAN, AND
MICHAEL FAHY FOR MALICIOUS PROSECUTION PURSUANT TO THE
COMMON LAW OF THE STATE OF NEW YORK.**

153. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through "152", with the same force and effect as though more fully set forth at length herein.

154. That the Defendants, their agents, servants and /or employees, without cause or justification, intentionally and maliciously initiated the underlying criminal proceedings against Plaintiff Erby without probable cause to have reasonably believed Mr. Erby had committed the underlying criminal acts for which he was accused.

155. That the Defendant officers continued the prosecution against Mr. Erby without probable cause.

156. The criminal proceeding against Plaintiff Erby was favorably terminated on March 1, 2022.

157. That the prior criminal proceeding against Mr. Erby was initiated without probable cause.

158. That the underlying Defendants initiated the underlying criminal proceedings against the Plaintiff with malice.

159. As direct and proximate result of the Defendant officers' misconduct, Plaintiff suffered extreme mental anguish, humiliation, pain and emotional distress from his wrongful and illegal incarceration.

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST DEFENDANTS, P.O.
ADELA RODRIGUEZ, AND DETECTIVES JAMES A. MCBROWN, SCOTT
PATTERSON, PATRICK SULLIVAN, AND MICHAEL FAHY FOR FALSE
ARREST AND FALSE IMPRISONMENT PURSUANT TO THE COMMON LAW
OF THE STATE OF NEW YORK**

160. That Plaintiff repeats, reiterates, and realleges each and every allegation contained in Paragraphs "1 through "159", with the same force and effect as though more fully set forth at length herein.

161. That by reason of the foregoing, the Plaintiff was intentionally confined without privilege or probable cause to believe that Plaintiff was engaged in unlawful activity.

162. That Plaintiff was aware of and did not consent to his confinement.

163. Mr. Erby was thereby falsely arrested and detained and imprisoned by the Defendants named herein.

164. As a direct and proximate result of the above described unlawful and malicious acts of the defendant police officers, all committed under color of their authority as police officers while acting in that capacity, Plaintiff sustained injuries and suffered emotional damages all of which resulted in the violation of plaintiff's rights under the laws and Constitution of the United States, in particular the Fourth and Fourteenth Amendments thereof.

165. The officers lacked knowledge or reasonable trustworthy information sufficient to warrant a person of reasonable caution in the belief that Plaintiff had been engaged in an unlawful offense thus justifying the Plaintiff's detention.

166. As a direct and proximate cause of Defendants unlawful actions, Plaintiff was caused to have suffered harm and severe emotional stress, and loss of liberty.

**AND FOR A SEVENTH CAUSE OF ACTION AGAINST DEFENDENTS, P.O.
ADELA RODRIGUEZ, AND DETECTIVES JAMES A. MCBROWN, SCOTT
PATTERSON, PATRICK SULLIVAN, AND MICHAEL FAHY FOR
INTENTIONAL INFLICTION OF EMOTIONAL STRESS.**

167. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "166" with the same force and effect as though more fully set forth at length herein.

168. That the Defendant police officers, agents, servants and/or employees, engaged in actions intended to inflict emotional trauma on the Plaintiff,

169. That by reason of the foregoing, the Plaintiff has suffered physical pain and suffering, mental and emotional distress due to Defendants unlawful and reckless actions as more fully described herein.

170. Plaintiff's claim for the Intentional Infliction of Emotional Distress was caused by the Defendant New York City Police officers who intentionally and without reason, privilege or

probable cause subjected Mr. Erby to be deprived of his liberty for eighteen months by charging Mr. crimes for which the Defendants knew Plaintiff had not committed.

171. For the reasons set forth herein, Plaintiff has been injured.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK FOR RESPONDEAT SUPERIOR.

172. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “171” with the same force and effect as though more fully set forth at length herein.

173. That at all relevant times the Defendants police officers of the City of New York, within the scope of their employment with the New York City Police Department who acted under pretense of color of state law and are acts were without authority of law in abuse of its powers.

174. The City of New York is therefore liable to Plaintiff under the common law of Respondeat Superior.

WHEREFORE, Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed by jury at trial.

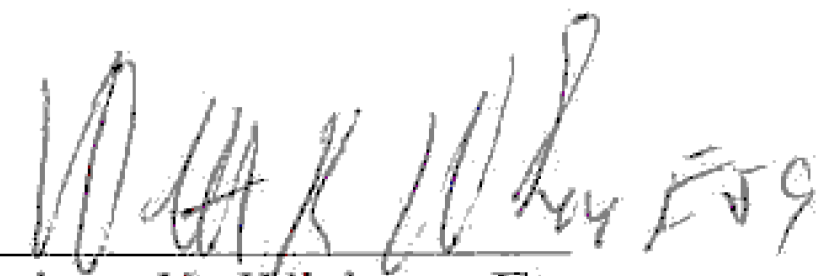
B. Awarding punitive damages to Plaintiff in an amount that would punish the individual Defendants for their willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

C. An award to plaintiff of the costs and disbursements herein.

D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.

E. Granting such other and further relief as this Court may deem just and proper.

Dated: October 14, 2022
Bronx, New York

By 
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SUPREME COURT STATE OF NEW YORK
 COUNTY OF BRONX

X

CAMROD ERBY,

AFFIRMATION

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY DEPARTMENT,
 P.O. ADELA RODRIGUEZ, IN HIS INDIVIDUAL CAPACITY,
 DETECTIVE JAMES A. MCBROWN, SHIELD NO. 2788,
 TAX ID No. 942153, IN HIS INDIVIDUAL CAPACITY,
 DETECTIVE SCOTT PATTERSON, IN HIS INDIVIDUAL CAPACITY,
 PATRICK SULLIVAN, IN HIS INDIVIDUAL CAPACITY, AND
 DET. MICHAEL FAHY, TAX ID NO. 941727, IN HIS INDIVIDUAL CAPACITY,

Defendants,

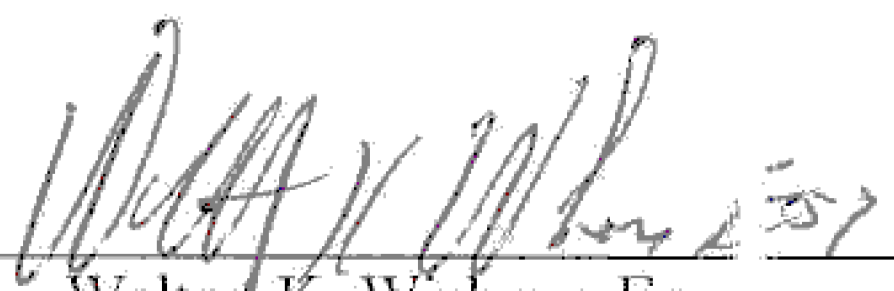
X

I, **Welton K. Wisham**, am an Attorney at Law duly admitted to practice law in the Courts of the State of New York, and say under penalty of perjury that: I am the attorney of record for the Plaintiff Mr. Camrod Erby,

That I have read the annexed Summons and Complaint and know the contents hereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is base upon information contained within my case file and the investigation conducted with the Plaintiff.

The reason I make this affirmation instead of the Plaintiff is that the Plaintiff resides in a county outside that which this affiant maintains an office.

Dated: October 14, 2022
Bronx, York, New York

By 
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